

1.

CASE #	CASE NAME	HEARING NAME
CVPS2500563	CAPITAL ONE N.A. VS KARROLL	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CAPITAL ONE N.A.

Tentative Ruling:

Motion to Vacate Dismissal and Enter Judgment per Terms of Stipulation GRANTED.

Dismissal pursuant to 664.6 entered on 12.11.25 is vacated.

Judgment is entered for Plaintiff Capital One against Defendant Barbara L Karroll.

Damages of \$2039.53 + \$570 costs for total award of \$2609.53

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503476	ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC	MOTION TO COMPEL VERIFIED RESPONSES TO REQUEST FOR ADMISSIONS SET ONE BY VISTANA CALIFORNIA MANAGEMENT, INC.

Tentative Ruling: If a party fails to provide any response to interrogatories or RFPs, the propounding party may move to compel responses. (C.C.P. §§ 2030.290(b), 2031.300(b).) Additionally, if a party fails to respond to RFAs, the propounding party may move for an order compelling responses or admitting the truth of the matters set forth in the requests. (C.C.P. § 2033.280(b).) There is no meet and confer requirement for any of the above motions.

Here, there is no dispute that Plaintiff failed to provide timely, verified responses to the discovery served by Vistana, including RFAs (nos. 1-24), FROGs (nos. 1.1, 2.1-2.13, 4.1-4.2, 6.1-6.7, 7.1-7.3, 8.1-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.1-12.7, 13.1-13.2, 14.1-14.2, and 17.1), two sets of SPROGs (nos. 1-62 and 63-76), and RFPs (nos. 1-30). An unverified response is tantamount to no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Therefore, Defendants have failed to provide timely responses to any of the discovery at issue.

Motion to Compel Verified Responses to Request for Admissions, Set One, GRANTED.

Plaintiff to submit verified responses, without objection, to RFAs 1-24.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.

Case Management Conference continued to 8.18.26.

The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management Statement shall be submitted on pleading paper with a brief summary of the status of the

case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503476	ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC.	MOTION TO COMPEL VERIFIED RESPONSES TO FORM INTERROGATORIES, SET ONE; REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR PLAINTIFF'S ATTORNEYS OF RECORD IN THE AMOUNT OF \$967.50 BY VISTANA CALIFORNIA MANAGEMENT, INC.

Tentative Ruling:

Motion to Compel Verified Responses to Form Interrogatories, Set One, GRANTED in part.

Plaintiff to submit verified responses, without objection, to FROGs 1.1, 2.1-2.5, 2.8-2.12, 4.2, 6.1-6.3, 6.5, 7.1-7.3, 8.1-8.2, 8.5, 8.7-8.8, 9.1-9.2, 10.1-10.3, 11.1-11.2, 12.2-12.7, 13.1-13.2, 14.1-14.2, and 17.1. Request for remainder is MOOT.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503476	ORTEGA, AN INDIVIDUAL VS MARRIOTT INTERNATIONAL, INC.	MOTION TO COMPEL VERIFIED RESPONSES TO SPECIAL INTERROGATORIES, SET ONE AND TWO; REQUEST FOR SANCTIONS AGAINST PLAINTIFF AND/OR PLAINTIFF'S ATTORNEY OF RECORD IN THE AMOUNT OF \$802.50 BY VISTANA CALIFORNIA MANAGEMENT, INC.

Tentative Ruling:

Motion to Compel Verified Responses to Special Interrogatories, Set One and Set Two, GRANTED in part.

Plaintiff to submit verified responses, without objection, to SROGs 37, 39, 41-54, 56-59, 61-62, 64-68, 71-72, and 74-75. Request for remainder is MOOT.

Sanctions in the amount of \$335 to be paid to Plaintiff's attorney within 30 days.